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Actual Mandate

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Document 45 Issued August 18, 2026

The judgment entered July 28, 2026, is now effective as the mandate of this fictional court. Serrano's appellate target challenging the three-level aggravating-role adjustment remains dismissed under the valid appeal waiver, without any ruling on the adjustment's merits. The sentence remains vacated, and the case is returned for full resentencing consistent with the published opinion.

The conviction is undisturbed. On remand, the district court shall conduct a complete sentencing proceeding, calculate the advisory Guidelines on the lawful record then before it, permit appropriate submissions and objections, address Mateo Serrano personally under Rule 32(i)(4)(A)(ii), and impose an independent lawful sentence. This court directs no particular term and no result on the manager-or-supervisor question.

The parties shall bear their own appellate costs as stated in the judgment. Protected presentence materials retain their existing confidentiality and travel only through the certified sealed-volume process. This mandate supplies no public-access authorization.

Issuance and Transmission

The ordinary fourteen-day rehearing period following July 28 expired on August 11, 2026. No timely petition, stay, or other intervening order appears on this docket. Seven days later, on August 18, the mandate issues under the regular appellate schedule. No period was shortened or specially extended.

Fourth Circuit Exercise Clerk Maela Cross shall transmit the opinion, judgment, and mandate to District Clerk Tessa Wren for district docket SYN-MDNC-25-CR-0328. The public docket will record issuance and return of jurisdiction for resentencing. Any protected volume remains separate from the public transmission and subject to the governing confidentiality order.

This document terminates the present appellate proceeding but does not predict a new sentencing date or outcome. Any later district action must occur on its own public or protected record as the applicable rules require. No real courthouse account, address, credential, probation system, or person is involved; every identifier and event belongs solely to the synthetic exercise.

Issued at the direction of Judges Slate, Alder, and March.

Maela Cross Fictional Fourth Circuit Exercise Clerk